

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2023-895

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ERIN MELVILLE, LICENSE NO. LPC 15671,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board Of Licensed Professional Counselor Examiners (the "Board") and Erin Melville ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on August 21, 2019, having been issued license number LPC 15671, and is currently so licensed.
3. This Order is a full and final resolution of case number 2023-895. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about around August 20, 2019, Respondent entered into a Confidential Agreement with the Board in case numbers 2018-3429 and 2018-3430 ("2019 Order"). Respondent was registered to practice as a Professional Counselor Candidate ("LPCC") and licensed as a provisional professional counselor ("LPP") and agreed to accept a license to practice professional counseling ("LPC") subject to probation and participation in Peer Assistance Services ("PAS") for five (5) years, including medication and therapy monitoring, and comply with all provisions of the Mental Health Practice Act and all rules and regulations of the Board. The 2019 Order was based on PAS concluding that Respondent was not safe to practice as a LPCC, LPP or LPC with reasonable skill and safety. Respondent failed to report a mental illness or condition that affects her ability to treat clients with reasonable skill and safety and Respondent failed to notify the Board of additional information concerning the

mental illness or condition that affects her ability to treat clients with reasonable skill and safety.

b. On or around January 25, 2023, Respondent notified the Board that she withdrew from her PAS contract and is no longer practicing as a LPC.

c. Respondent violated the 2019 Order, which is no longer confidential due to Respondent's failure to comply with 2019 Order.

d. This Order supersedes the 2019 Order and also includes case number 2023-895.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(b), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

RELINQUISHMENT

7. Respondent hereby relinquishes her LPC license in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board, including the provisions of section 12-20-404(3), C.R.S.

8. Following relinquishment of her licensure, Respondent shall not perform any act requiring a licensure to practice.

9. Respondent understands that if she applies for licensure as a LPC at any future time, Respondent will be required to comply with all criteria for initial license that exist at the time of application.

10. Respondent also agrees not to perform any act constituting psychotherapy

as defined under section 12-245-202(14), C.R.S.

TERMS AND CONDITIONS

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403, 12-245-214, 12-245-226, and 24-4-104(9), C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. Respondent shall obey all state and federal laws while this Order is in effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

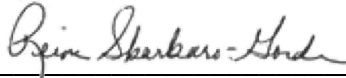
RESPONDENT



ERIN MELVILLE
LICENSE No. LPC 15671

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



REINA SBARBARO-GORDON
Program Director

Effective this 5th day of June,
2023.